

25VECV01563 25VECV01563

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-08-04

Motion: PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CNWI%2C08%2F04%2F2026

Source SHA-256: dc3d9d75a56cdf6d275162aa1ada25154614bb675ec9fe54aec763154c02579f

Case Number: 25VECV01563 Hearing Date: August 4, 2026 Dept: NWI

** THERE ARE TWO TENTATIVES FOR 8/4/26 ON THIS MATTER **

#1

25VECV01563 KARINA KREUZ v. DEVOTED GUARDIANS

HOSPICE, et al.

August 4, 2026, at

8:30 a.m.

Van Nuys

Courthouse East, Dept. I

Tentative Ruling

-- Motion for Relief As Counsel

I.

Background

On March 19, 2025, Plaintiff Karina Kreuz ("Plaintiff") filed a complaint against Defendants Staff Agency LLC ("Staff Agency"), Stockdale Holding LLC ("Stockdale"), Devoted Guardians Hospice ("Devoted Guardians"), Best Choice Hospice, Inc. ("Best Choice"), Ardor Care Hospice ("Ardor Care"), Gabriel O. Castillo ("Castillo") (collectively, "Defendants"), and Does 1 to 50 alleging fourteen causes of action: (1) sexual harassment and hostile work environment; (2) quid pro quo sexual harassment; (3) failure to prevent harassment; (4) sexual battery; (5) intentional infliction of emotional

distress; (6) failure to pay all wages due upon separation; (7) failure to pay overtime wages; (8) failure to provide meal periods; (9) failure to provide rest periods; (10) failure to provide accurate itemized wage statements; (11) failure to maintain required records; (12) constructive discharge; (13) personal liability for wage violations; and (14) unfair business practices.

On June 15, 2026, Nathan Mubasher, Esq. ("Counsel") filed the instant motion to be relieved as counsel for Defendants.

On June 16, 2026, Counsel filed an amended motion to be relieved as counsel.

On June 22, 2026, Counsel filed a second amended motion to be relieved as counsel.

On July 17, 2026, Plaintiff filed an opposition.

On July 24, 2026, Defendants filed a reply in support of Counsel's motion to be relieved.

II.

Relief As Counsel

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Cal. Code of Civ. Proc. § 284(2).) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and Motion)(Cal. Rules of Court Rule 3.1362(a)), MC-052 (Declaration)(CRC Rule 3.1362(c)), and MC-053 (Proposed Order)(CRC Rule 3.1362(e).) The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (CRC Rule 3.1362(e).)

Further, the

requisite forms must be served on the client and all other parties who have appeared in the case. (CRC Rule 3.1362(d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (CRC Rule 3.1362(e).) The Court has discretion on whether to allow an attorney to withdraw, and a motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

Counsel declares that “[t]here has been a breakdown in communication between counsel and counsel’s clients...The breakdown is such that I am unable to communicate effectively with the clients and to obtain the clients’ cooperation in my continued representation in this matter.” (See MC-052.) Counsel provides all requisite forms and trial in this action is not set, giving Plaintiffs adequate time to find alternative counsel. The Court notes the proposed order does not include the hearing for the co-pending motion to enforce settlement also set for August 4, 2026, however the motion to enforce settlement was filed after the instant motion to relieve counsel. Accordingly, the Court finds good cause for relief.

Plaintiff argues in opposition that Counsel has had contact with his clients, as Counsel served sworn discovery responses verified by Castillo on May 22, 2026, and verified his client’s address via telephone in the past thirty days. (Opp., pp. 4-5.) Plaintiff argues withdrawal would prejudice Plaintiff, disrupt pending discovery, and leave five entity defendants unable to appear. (Opp., pp. 5-6.) Plaintiff further argues Item 5 of the MC-052 form was left uncompleted, as discovery is ongoing. (Opp., p. 6.)

The Court is unpersuaded by Plaintiff’s arguments. Plaintiff contends Counsel has communicated with his clients recently, therefore Counsel is making misrepresentations to the Court by declaring there has been a breakdown in communications. However, Counsel does not assert there has been no communication between Counsel and client, only that there has been a breakdown in communication rendering Counsel unable to effectively communicate. The verified discovery responses and confirmation of client’s address does not on its own dispute Counsel’s declaration of a breakdown in communication. Further, as no trial has been set in this matter, the Court does not find Plaintiff prejudiced by granting this motion to

be relieved as counsel. While discovery may
be ongoing, as of today's date no discovery hearings are set.

Based on the foregoing, Counsel's motion for relief as
counsel is GRANTED effective upon filing of an updated proposed order and filing
of the proof of service of the signed order on Plaintiff. Counsel is ordered to give notice.

TENTATIVE #2

SUPERIOR
COURT F THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

KARINA KREUZ,

Plaintiff,

vs.

STAFF AGENCY LLC, et al.

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 25VECV01563

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO ENFORCE
SETTLEMENT

Dept.

I

DATE:

AUGUST 4, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: MARCH 19, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

On March 19, 2025, Plaintiff Karina Kreuz

("Plaintiff") filed a complaint against Defendants Staff Agency LLC ("Staff Agency"), Stockdale Holding LLC ("Stockdale"), Devoted Guardians Hospice ("Devoted Guardians" or "Defendant"), Best Choice Hospice, Inc. ("Best Choice"), Ardor Care Hospice ("Ardor Care"), Gabriel O. Castillo ("Castillo"), and Does 1 to 50 alleging fourteen causes of action: (1) sexual harassment and hostile work environment; (2) quid pro quo sexual harassment; (3) failure to prevent harassment; (4) sexual battery; (5) intentional infliction of emotional distress; (6) failure to pay all wages due upon separation; (7) failure to pay overtime wages; (8) failure to provide meal periods; (9) failure to provide rest periods; (10) failure to provide accurate itemized wage statements; (11) failure to maintain required records; (12) constructive discharge; (13) personal liability for wage violations; and (14) unfair business practices.

On July 13, 2026, Plaintiff filed the instant motion to enforce settlement.

On July 22, 2026, Defendant filed an opposition.

On July 28, 2026, Plaintiff filed a reply.

II.

LEGAL

STANDARD

Cal. Code

of Civ. Proc. §664.6 provides, in pertinent part, as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."

In hearing a § 664.6 motion, the trial court may receive evidence, determine disputed facts, and enter terms of a settlement agreement as a judgment. (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732.) The Court may also receive oral testimony in addition to declarations. (*Kohn v. Jaymar-Ruby, Inc.* (1994) 23 Cal.App.4th 1530, 1533.)

The Court

may interpret the terms and conditions of the settlement (*Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 566), but the Court may not create material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810).

Strict compliance with the statutory

requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37.) The party seeking to enforce a settlement “must first establish the agreement at issue was set forth ‘in a writing signed by the parties’ (§ 664.6) or was made orally before the court.” (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 304.)

The

settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985.) “[A] writing is signed by a party if it is signed by ... [a]n attorney who represents the party.” (Cal. Civ. Proc. Code § 664.6(b)(2).)

III.

DISCUSSION

Procedural Issues

Defendant

argues in opposition that the Court should either continue the hearing for the instant motion or take it off calendar on the grounds Plaintiff served the moving papers on July 13, 2026, two court days short of the notice required by CCP §§ 1005(b) and 1010.6. (Opp., p. 2.)

As

the motion has been fully briefed, the Court exercises its discretion to review the moving, opposition, and reply papers on their merits.

Evidentiary Objections

Plaintiff

submits evidentiary objections to Defendant's counsel's declaration and the exhibits attached, submitted with Defendant's opposition. Plaintiff's evidentiary objections are overruled as to Nos. 1-10 and 12-16. The objections did not include a No. 11.

Defendant

submits evidentiary objections to Plaintiff's reply and objections to Plaintiff's evidentiary objections. Defendant's evidentiary objections are overruled as to Nos. 1-3.

Settlement Agreement

Plaintiff

argues she has an enforceable settlement agreement with Defendant pursuant to CCP § 664.6 because, on July 2, 2025, the parties executed a written settlement agreement (the "Agreement"). (Burton Decl., ¶ 3; Exh. A.) Plaintiff seeks an order and judgment to enforce the terms of the Agreement, as well as attorneys' fees, costs, and interest at the legal rate of ten percent per year from the due date of each defaulted installment. (Burton Decl., ¶¶ 21-25.)

Pursuant

to the terms of the Agreement, Defendant was to pay Plaintiff a sum of \$34,500.00 in ten monthly installments of \$3,450.00. (Burton Decl., ¶ 5.) Plaintiff claims Defendant paid the first installment of \$3,450.00 on August 1, 2025. (Burton Decl., ¶ 8.) However, Defendant failed to pay the remaining nine installments. (Burton Decl., ¶ 9.) Based on the foregoing, Plaintiff now seeks to enforce the settlement agreement requiring Defendant to pay the final \$31,050.00 under the Agreement. (Mot., p. 7.)

The

Court finds the parties have a valid, written settlement agreement, pursuant to CCP § 664.6, requiring Defendant to pay Plaintiff a sum of \$34,500.00. (See Burton Decl., Exh. A.) While the Agreement uses the shortened name "Devoted Guardian," the Court finds the signature requirement is satisfied and that "Devoted Guardian," refers to Defendant.

Based

on counsel's declaration and exhibits, the Court also finds that Defendant was to pay Plaintiff ten installments of \$3,450.00 on a monthly basis starting August 1, 2025, and ending May 1, 2026. (See Burton Decl., Exh. A.) Defendant has failed to do so. (See Burton Decl., Exh. B.) The Court may consider declarations of the parties and their counsel when determining the material terms of a settlement agreement. (In re Marriage of Assemi (1994) 7 Cal.4th 896, 911.) Accordingly, the Court finds that Defendant, by failing to pay Plaintiff pursuant to the terms of their agreement, breached the written settlement agreement.

Attorneys' Fees and Costs

The

Agreement provides for recovery of attorney's fees and costs in bringing the motion to enforce settlement. (See Burton Decl., Exh. A.) Plaintiff's counsel requests fees and costs in the amount of \$14,008.80, comprised of 23.5 hours of attorney work at an hourly rate of \$575.00, and \$496.30 in costs. (Burton Decl., ¶¶ 21-23.) The Court finds the hourly rate reasonable but the amount of hours unreasonable considering, inter alia, the straightforward nature of the motion. The Court further finds the costs unreasonable as counsel does not explain what the costs are for beyond being "in connection with attempts to enforce payment of the unpaid settlement amount through the filing of this Motion." (Burton Decl., ¶ 22.) The Court reduces this amount to \$2,935.00, comprised of a \$60.00 filing fee for the instant motion, and 5 hours attorney work at an hourly rate of \$575.00.

Pre-Judgment Interest

Plaintiff

requests pre-judgment interest at the rate of ten percent per year on each defaulted installment from the date each installment became due. (Burton Decl., ¶ 24.) Plaintiff requests a total interest amount of \$2,596.07, consisting of the total interest accrued for each defaulted payment of \$3,450.00 from the date of default for each payment in the amount of \$1,752.41, as well as the ongoing interest running from May 1, 2026, the date of the last payment, to August 4, 2026, the date of the hearing, in the amount of \$816.66. (Burton Decl., ¶ 25.)

The

Court disagrees with Plaintiff's calculations. The Court finds Plaintiff

requests interest for each defaulted installment until the August 4, 2026, hearing date, as well as interest on the entire \$31,050.00 balance from May 1, 2026, to August 4, 2026. The Court finds the interest is double the agreed upon amount from May 1, 2026, to August 4, 2206.

The Court therefore awards pre-judgment interest in the amount of \$1,752.41.

IV.
CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's motion to enforce settlement.

Judgment is entered against Defendant Devoted Guardians Hospice in the amount of \$31,050.00. Pre-judgment interest is awarded in the amount of \$1,752.41.

Attorneys' fees and costs are awarded to Plaintiff in the amount of \$2,935.00.

Plaintiff to serve and file a proposed judgment consistent with this ruling.

Moving party to give notice.

Dated: August
4, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior
Court